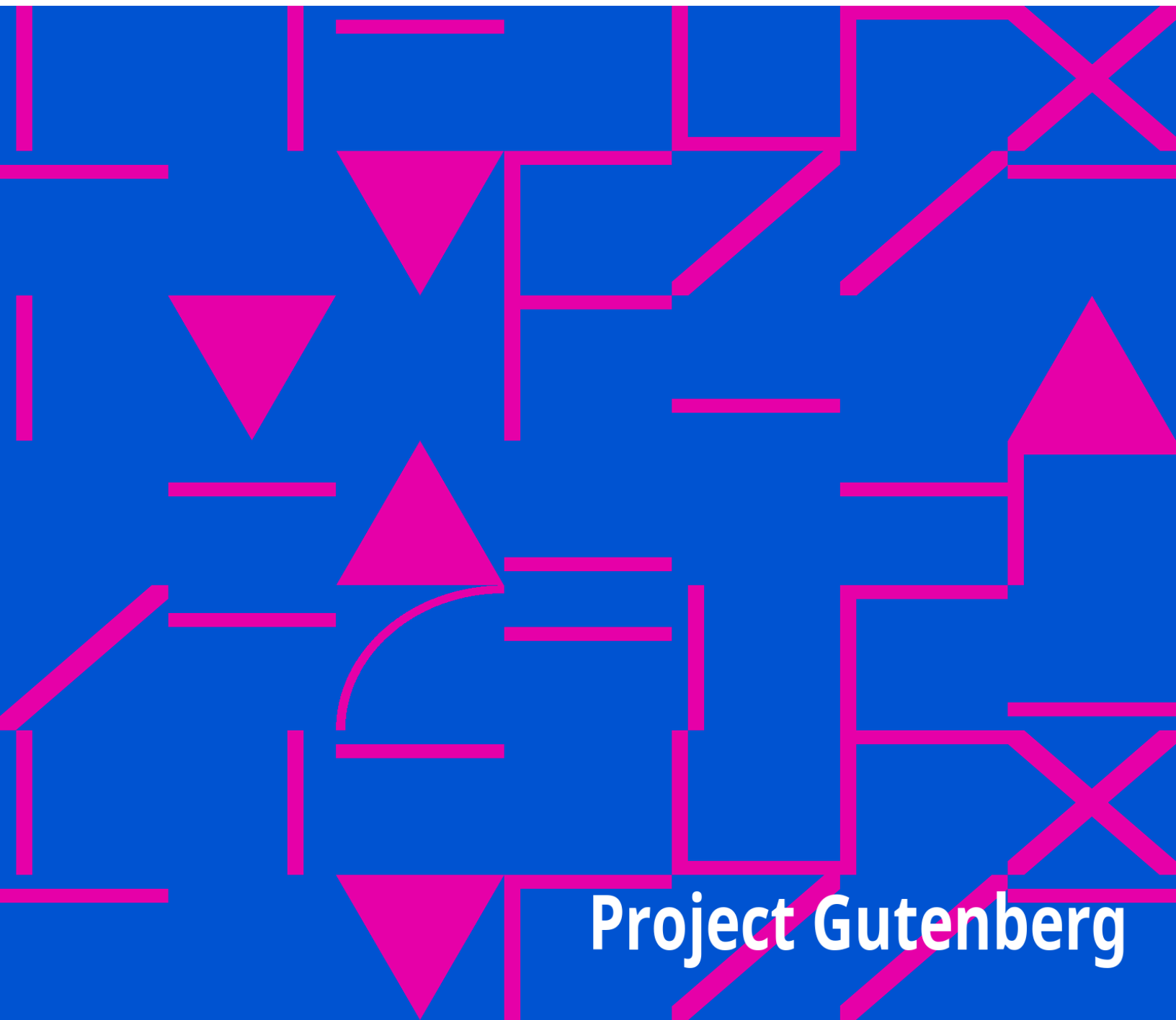


The Love Sonnets of a Car Conductor

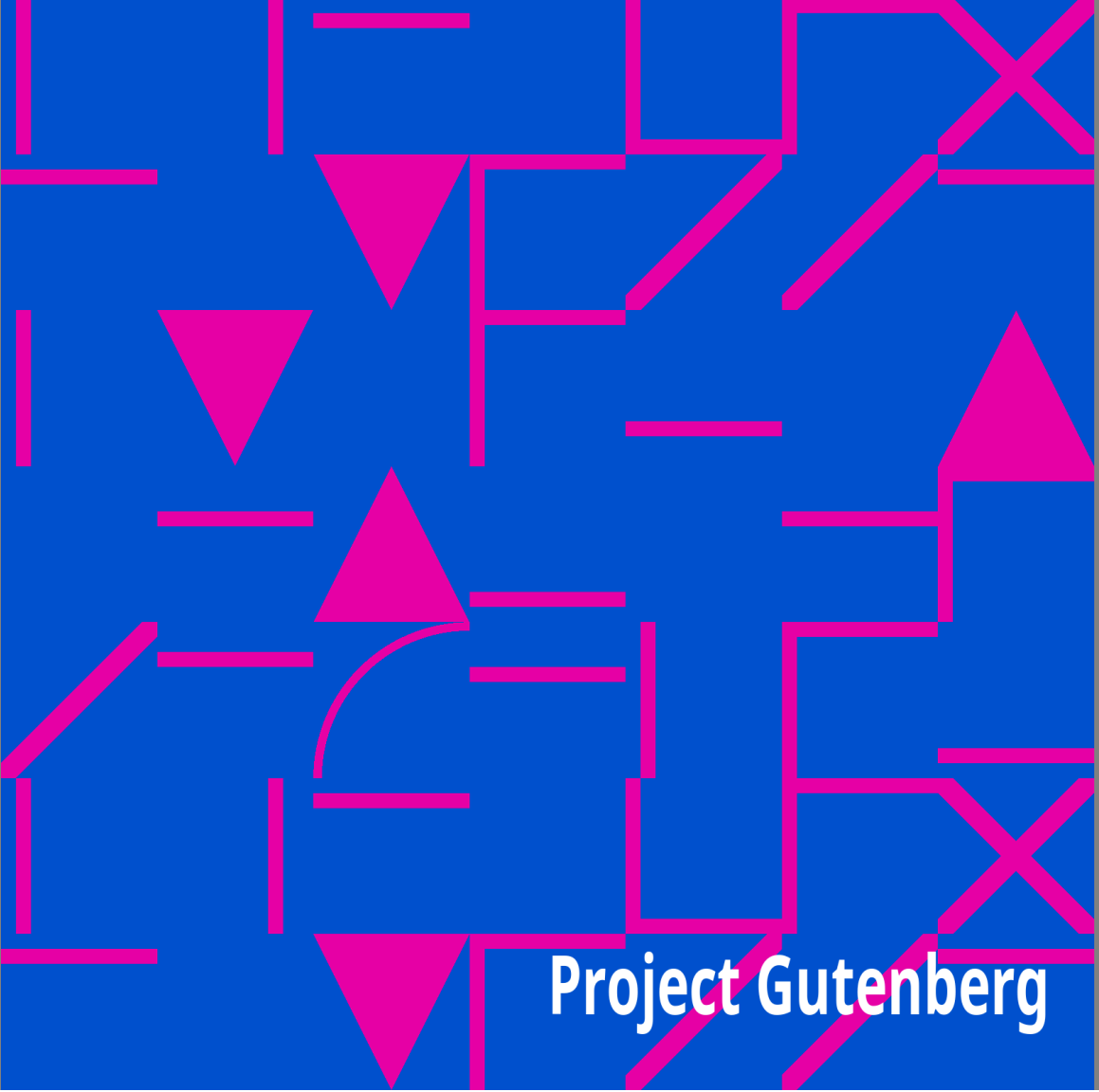
Wallace Irwin

The background of the lower half of the image is a solid blue color. Overlaid on this is a complex, abstract pattern of bright pink lines and shapes. The pattern includes various geometric elements: horizontal and vertical lines of different lengths, diagonal lines, solid triangles pointing in different directions, and 'X' marks formed by intersecting diagonal lines. Some of these shapes are nested or overlapping, creating a sense of depth and complexity. The overall effect is a modern, graphic design that contrasts sharply with the white text above.

Project Gutenberg

The Love Sonnets of a Car Conductor

Wallace Irwin



Project Gutenberg

The Project Gutenberg eBook of The Love Sonnets of a Car Conductor

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Love Sonnets of a Car Conductor

Author: Wallace Irwin

Release date: March 1, 2004 [eBook #5332]

Most recently updated: February 4, 2013

Language: English

Other information and formats: www.gutenberg.org/ebooks/5332

Credits: Produced by David Schwan and David Widger

*** START OF THE PROJECT GUTENBERG EBOOK THE LOVE
SONNETS OF A CAR CONDUCTOR ***

THE LOVE SONNETS OF A CAR CONDUCTOR

By Wallace Irwin

*Author of
The Love Sonnets of a Hoodlum
The Rubáiyát of Omar Khayyám, Junior
Etc.*

*With a harmless and instructive Introduction
by
Wolfgang Copernicus Addleburger*

*Professor of Literary Bi-Products
University of Monte Carlo*

*Paul Elder & Company
San Francisco and New York*

*Muse of my native land,
am I inspir'd?
—Keats.*

*Copyright, 1908
by Paul Elder and Company*

CONTENTS

[INTRODUCTION](#)

[THE LOVE SONNETS OF A CAR CONDUCTOR](#)

PROLOGUE

I

II

III

IV

V

VI

VII

VIII

IX

X

XI

XII

XIII

XIV

XV

XVI

XVII

XVIII

XIX

XX

XXI

XXII

EPILOGUE

INTRODUCTION

Science may conquer the stars, but it does nothing by jumps. As a Scientist, as well as a philosopher, I am accustomed to reaching the Transcendental by winding paths. It is characteristic of me that I should have consented to preface this remarkable Sonnet Cycle only after supreme deliberation, and that I should at last have determined to speak in behalf of the Car Conductor for the following reasons:

1. As a Botanist I am fascinated by the phenomenon of Genius flourishing from bud to flower, from flower to seed.

2. As a Psychologist I am anxious to establish once and for all, both by plano-inductive and precoordinate systems of logic, the Status of Slang.

What position does Slang occupy in the thought of the world? Let us turn to Zoology for an answer.

No traces of Slang may be found among mollusks, crustaceans or the lower invertebrates. Slang is not common to vertebrate fishes or to whales, seals, reptiles or anthropoid apes—in a word, slang-speaking is nowhere prevalent among lower animals. It may, then, be definitely and clearly asserted that Slang is the natural, logical expression of the Human Race. If Man, then, is the highest of created mammals, is not his natural speech (Slang) the highest of created languages? It is generally conceded that Literature is the most exalted expression of Language. Would not the Literature, then, which employs the highest of created languages (Slang) be the supreme Literature of the world?

By such logical, irrefutable, inductive steps have I proven not only the Status of Slang, but the literary importance of these Sonnets which it is at once my scientific duty and my esthetic pleasure to introduce.

The twenty-six exquisite Sonnets which form this Cycle were written, probably, during the years 1906 and 1907. Their author was William Henry Smith, a car conductor, who penned his passion, from time to time, on the back of transfer-slips which he treasured carefully in his hat (1). We have it from no less an authority than Professor Sznusko that the Car Conductor usually performed these literary feats in public, writing between fares on

the rear platform of a Sixth Avenue car. Smith's devotion to his Musa Sanctissima was often so hypnotic, I am told, that he neglected to let passengers on and off—nay, it is even held by some critics that he occasionally forgot to collect a fare. But be it said to his undying honor that his Employers never suffered from such carelessness, for it was the custom of our Poet to demand double fares from the old, the feeble and the mentally deficient.

Even as the illimitable ichor of star-dust, the mysterious Demiurge of the Universe, keeps the suns and planets to their orbitary revolutions, so must environment mark the Fas and Nefas of Genius. Plato's Idea of the Archetypal Man was due, perhaps, as much to the serene weather conditions of Academe as to the marvelous mentality of Plato. What had Job eaten for breakfast that he should have given utterance to his magnificent Lamentation? Was he the discoverer of Human Sorrow or the pioneer of Human Dyspepsia?

It is not altogether radical on my part, then, for me to assert that many of the stylistic peculiarities found in these Sonnets are attributable to the locale of their inspiration the rear platform of a Sixth Avenue car. One can plainly hear the jar and jounce of the elliptical wheels, the cry, "Step lively!" the six o'clock stampede, the lament of the strap-hanging multitude in such lines as these:

*"Three days with sad skidoo have came and went,
Yet Pansy cometh nix to ride with me.
I rubber vainly at the throng to see
Her golden locks—gee! such a discontent!
Perhaps she's beat it with some soapy gent—"*

Where are lines like these to be found in the Italian of Petrarch? Where has Tasso uttered an impassioned confession to resemble this:

*"But when I ogle Pansy in the throng
My heart turns over twice and rings a gong"?*

Of the human or personal record of William Henry Smith very little has been discovered. Looking over the books of the Metropolitan Street Railway I unearthed the following entry:

"Nov. 1, 1907:"

"W. H. Smith, conductor, discharged."

"Remarks:—Car No. 21144, William Smith, conductor, ran into large brewery truck at So. E. cor. Sixth Ave. It is reported that Smith, to the neglect of his duty, was reading poetry from a book called 'Sonnets of de Heredia' at the time of the accident. Three Italians were slightly injured by the accident, and Ethelbert Pangwyn, an actor starring in 'The Girl and the Idiot,' a musical comedy, was killed."

"Smith was held for manslaughter, but Judge O' Rafferty, who had seen 'The Girl and the Idiot,' discharged the defendant, averring that the killing of Pangwyn did not constitute a crime."

What, then, has become of this minstrel who sang the Minnelieder of the Car-barns? Like Homer, like Omar, like Sappho, like Shakespeare, he is a Voice singing out of the mists. He was but a Name to his employers; and his friends, if he has friends, remember him not. These Sonnets, written neatly on twenty-six violet transfer-slips, were discovered, together with a rejection blank from a leading magazine, in the Dead Letter office. According to the current folk-lore in Harlem and the Bronx, Smith is now living in California employed as a brakeman on the Southern Pacific Railroad. Some aver that Pansy fell heiress to a sausage establishment and moved to Italy with her Poet. Still others maintain that Pansy, Gill the Grip and Maxy the Firebug never existed in real life—were merely the mind-children of a Symbolist and a dreamer of dreams.

To the latter theory I incline at a scholarly angle. This Cycle may be taken, perhaps, not so much as a living record of human experience as a lofty parable sounding the key-note of all human life. Gill the Grip is the Iago, the Mefistofele, the symbolism of a malevolent destiny. Maxy the Firebug may be the Poet's interpretation of the Social Unrest, of Doubt, of progressive irresponsibility. Would it be going too far, then, to say that Pansy stands to us as the symbol of Pan-girlism—as an almost Anacreontic yearning for the type? Or may not these Sonnets be taken, in a way, as a modern Vita Nuova wherein a Sixth Avenue Alighieri calls to his Beatrice and mourns within when,

"Pansy-girl refuses to occur?"

So much for the Poet and his Purpose. Should any one of the readers of this Cycle doubt the enduring greatness of the lines, let him consider that I, Wolfgang Copernicus Addleburger, have seen fit to introduce them to immortality.

(1) Since the salary-books of the Metropolitan Street Railways show, during the year 1906, 182 conductors named Smith in their employ, 38 of whom were named William Smith and 12 William Henry Smith, it is easy for the reader to conceive my task in establishing the identity of our Poet. W. C. A.

THE LOVE SONNETS OF A CAR CONDUCTOR

PROLOGUE

*Did some one ask if I am on the job?
I sure am to the pay-roll with my lay,
A hot tabasco-poultice which will stay
Close to the ribs and answer throb-to-throb.
Here have I chewed my Music from the cob
And followed Passion from the get-away
Past the big Grand Stand where the Pousse-Café
Christens my Muse as Jennie-on-the-Daub.*

*Hark ye, all marks who break the Pure Fool Law,
How I, the Windy Wonder of the Age,
Have fought the Tender Passion to a draw
And got my mug upon the Sporting Page,
Since Love and I collided at the curve
And left me with a Dislocated Nerve.*

I

*Am I in bad? upon the tick of nine
Today the Pansy got aboard my ship
And sprung the Trans-Suburban for a trip.
Say, she's the shapely ticket pretty fine!
Next to her pattern Anna Held looks shine
And Lilly Russell doesn't know the grip.
But oh! she's got a deep ingrowing tip
That she must shy at honks like yours and mine.*

*I says to her, "Fare, please!" out loud like that,
But she pipes, "Fade, Bill, fade! you pinched my fare."
That get-back tripped your Oswald to the mat,
And yet I yelled, "Cough up here, Golden Hair!"
Eh, what? I got the zing from Pansy's orb
Which says, "Dry out now, Shorty,—please absorb!"*

II

*A True McGlook once handed this to me:
When little Bright Eyes cuts the cake for you
Count twenty ere you eat the honey-goo
Which leads to love and matrimony—see?
A small-change bunk what's bats on spending free
Can't four-flush when he's paying rent for two.
The pin to flash on Cupid is 'Skidoo!'
The call for Sweet Sixteen is "23."*

*But say! Life looks goshawful on the stretch
Without a Ray of Sunshine in my flat,
With no one there to call me "Handsome wretch,"
And dust the fuzz and mildew off my hat.
If she was waiting at the church tonight
You'd find me there with wedding-bells all right!*

III

*Pansy got on at Sixteenth Street last night,
And some one flipped a handspring in my heart.
She snickered once, "Oh look, here's Mr. Smart!"
Was I there Henry Miller? guess you're right!
I did the homerun monologue as bright
As any scrub that ever learned the art.
I plum forgot the signals, "Stop" and "Start!"
And almost wrecked the car once—guess I might!*

*I took one Mike six blocks beyond the place
He flagged for his. He got as red as ham
And yodelled through his apopleptic face,
"I think you're dips!" I says, "I know I am—"
When Pansy starts to send a wireless wave
She simply just can't make her eyes behave!*

IV

*On every car there's always one fat coot
What goes to sleep and dreams he's paid his fare.
And when you squeak he gets the Roosevelt glare,
And hoots, "I won't be dickied with—I'll shoot!"
Then all the passengers get in and root.
Loud cheers of, "Put him off!" and "Make him square!"
Till Mr. Holdfast with an injured air
Pungles his nick and ends the bum dispute.*

*It's ever thus on this here rolling ball—
You've got to pop your coin to ride so far.
The yap that kicks and rings a deadhead call
Must either spend or else get off the car.
On Life's Street Railway wealth may cut the cheese,
But Death rings up and says, "Step lively, please!"*

V

"There'll be some fancy steps at Car-Barn Hall,"
Gilly the Gripman pipes me off today,
"This won't be any gabberfest—for say!
Nix but the candy goes to this here ball.
You've got to flash your union card, that's all,
To circulate the maze with Tessie May,
And all the Newport push out Harlem way
Will slip on wax till sunrise,—do you call?"

I told him that I pulled the gong for that!
If Pansy would be there 'twas was Me for It.
I'd burnish up my buttons, mop my hat,
Polish my pumps and blow in for a hit.
"All to the Fritz," says Gill, "if you get jolly
Around the curves—you're apt to slip your trolley!"

VI

*The lemon-wagon rumbled by today
And dropped me off a sour one—are you on?
I went and gave the boss a cooney con
About the Car-Barn Kick—what did he say?
"Back to your platform, Clarence light and gay,
Jingle the jocund fares, nor think upon
The larks of Harry Lehr or Bath House John,
For they are It and you are still on pay."*

*So I have been sky-prancing all night long
A-dragging car-conductors and their queens
Clad in their laughing-robcs to join the throng
That makes the Car-Barn function all the beans.
And say! I had a brainstorm just last trip
When I took Pansy's fare from Gill the Grip.*

VII

*At Midnight when I got a gasp for lunch
I mushed it for the Car-Barns just to lamp
And see the Creamy Charlies do the vamp
And swing their Fancy Floras in the crunch.
I piped my Pansy in among the bunch
And asked her would she mix it with the Champ,
Wouldn't she like to join me in a stamp?
She saw me first and stopped me with a punch.*

*I saw her hook a loop with Gill the Grip,
With Pinky Smith and Handsome Hank she heeled;
With all the dossy bunks she took a skip
Each time the German tune-professor spieled.
But nix with me the lightsome toe she sprung—
As Caesar said to Cassius, "Ouch! I'm stung!"*

VIII

*Forsooth that was a passing lusty clout
That chopped me off with Pansy—don't you fret!
There's quite a blaze inside my garret yet,
And all the Dipper Corps can't put it out.
Gilly the Grip's a pretty ricky tout—
Under the old rag-rug for him, you bet,
When I put on my Navajo and get
One license to unloose my soul and shout.*

*Perhaps he thinks I'm old Molasses Freight
Sidetracked at Pokey Pond and filled with prunes
Waiting for Congress to appropriate
The nuggets draped around me in festoons.
Wait till I ticket Pansy, then I guess
Slow Freight will switch to Honeymoon Express!*

IX

*Today I gave a serenade to Gill;
I says, "To put it pleasant you're a screech,
Your smile would shoo the seagulls off the beach,
Your face would give Vesuvius a chill.
You're just what Mr. Shakespeare calls 'a pill
Trying to keep company with a peach.'
Now, if you want to answer with a speech,
Open your trap at once, or else lie still."*

*But when I handed Gill the Grip this cluster
He simply clamped his language-mill down tight,
Strangled his guff and acted rather fluster
Although I'm sure I spoke to him polite.
I guess that Mr. Gilly ain't the kind
That understands when people talk refined.*

X

*Three days with sad skidoo have came and went,
Yet Pansy cometh nix to ride with me.
I rubber vainly at the throng to see
Her golden locks-gee! such a discontent!
Perhaps she's beat it with some soapy gent-
Perhaps she's promised Gill the Grip to be
His No. 1 till Death tolls "23!"
While I am Outsky in the supplement.*

*Now and anon some Lizzie flags the train
And I, poor dots, cry, "Rapture, it is her!"
Yet guess again-my hope is all in vain
And Pansy girl refuses to occur.
If this keeps up I think I'll finish swell
Among the jabbers in a padded cell.*

XI

*My Trolley hikes to Harlem p.d.q.,
And picks up pikers all along the beat.
At six o'clock the aisles are full of feet,
The straps with fingers, and the entire zoo
Boils on the platform with a mad huroo
Reckless as Bronx mosquitoes after meat.
The widow stands, the fat man gets the seat
And Satan smiles like Foxy M. Depew.*

*And as we hikes along I thinks, thinks I,
"The human race is like the ocean foam,
Roaring and discontented, peevish, fly—"*
Say, why in blazes don't they stay to home?
This travel-sickness is a danger which
Keeps hoboes poor and corporations rich.

XII

*Today I piped my future Ma-in-law.
She got aboard my Pullman and she scared
Three babies into fits the way she glared.
Rattle my baggage if I ever saw
A cracker-box to equal Mother's jaw,
A hardwood-finish face all nailed and squared.
She ossified the gripman when she stared—
And me? Well, I was overcame with awe.*

*But, being Pansy's Ma, 't was up to me
To hand her something pit-a-pat and swell,
And so I says, "Hello, Queen Cherokee!
What ho! for Pansy? hope she's feeling well."
And Ma responds, a trifle tart but game,
"She minds her bizness—hope you feel the same."*

XIII

*I don't think Mother chalked me out to win,
To be the steady of her darling child.
She thinks I am a kick-up, something wild,
And no sweet girl should wear my college pin.
She thinks I'm some too piffly with my chin
And my soft prattle simply gets her riled.
I've lost my keys with her, to put it mild,
I don't belong, because I am not In.*

*Say how, with such an iceberg on the track,
Can I conduct my car to married bliss?
I hoped that I could whistle Pansy back,
And lo! I got a frostbite off of this!
I'd wrastle Death for Her, I'd fight her Pa,—
But stab me if I'll syrup to her Ma!*

XIV

*E'en as I stood with cobwebs in my tower
A candy vision came and flagged the boat—
Give forty rah-rah-rahs! O joy, O gloat!
'Twas Pansy like a fairy in a bower
Warbling, "Hi, stop the car!" With all my power
I yanked the bell. My brain was all afloat,
My heart cut pin-wheels, stole a base at throat,
Sang "Tammany"—and knighthood was in flower.*

*I helped her on. My shoes were full of feet.
I says, "How's Ma?" She answers, "Going some."
I doffed my lid and ventured to repeat
The breeze had put the weather on the bum.
Then she replied, not seeming sore or vexed,
"It may not be so punk on Sunday next."*

XV

*The Sinful Rich go whizzing by all day
In wealthy wagons, looking pert and swell;
They get the ride, the Commons get the smell
And full of thought and microbes wend their way.
Maxy the Firebug says that Mammon's sway
Is stringing Virtue to a fare-ye-well,
But wait, he says, till Labor with a yell
Soaks Mam a crack forninst the vertebray.*

*The Rich, says Max, are simply dips and yeggs
That lift the headlight beads from yaps like us;
They pinch your pie, sew up our ham and eggs
And leave us minus all that they are plus.
The world, says Max, belongs to me and Bill
And Mrs. Casey—whoa! let's roll a pill!*

XVI

*At Mrs. Casey's hunger-killing shop
Whither I hie thrice daily for my stew,
I dream I'm Mr. Waldorf as I chew
My prunes or lay my Boston-baked on top.
Growley and sinkers, slum and mutton sop,
India-rubber jelly known as "glue,"
A soup-bone goulash with a spud or two,
Clatter below until I signal "Stop!"*

*There may be chefs in France or Albany
Can knock a poem from a wedge of pie;
But just give me a check on Mrs. C.,
For rapid-filling ballast, murmurs I.
Kings may prefer some tasty wads of hash,
But they don't feed at fifteen cents per crash!*

XVII

*Pansy and me for Coney Sunday noon
To see a perfect lady bump the bumps;
We rubbered at the lions with the chumps
And took the Wellman special to the moon.
She asks me, "Dance?" I answers, "Just as soon,"
And so we clutched and whirled into the gumps,
But every time I went to stir my stumps
They stuck like gum-drops to a macaroon.*

*"I could die dancing, Danny!" murmurs she.
(I gambolled on her corns, she hollered, "Don't!")
"I could die dancing also" (this from me),
"But if you'll pass me up, I guess I won't."
Just then some lemon-sport observed my glide
And warbled, "Slide, you frozen chicken, slide!"*

XVIII

*I next sprung Pansy for a four-bit feed—
It was a giddy tax, but what care I?
We shot the bill-of-fare from soup to pie
And lemonade (that cost an extra seed).
"You're the cute plunge," says Pans', and I agreed
That at a spenderfest I wasn't shy,—
That when it came to rolling nickels by,
Willie the Cowboy was a perfect bleed.*

*She said that Thomas Lawson on a lark
Would faint away to see the way I blew;
She said I'd be the whizz in Central Park,
And Ready Cash to me seemed very few.
I asked her, Did she need a Valentine?
And she responded, "You're the pink for mine!"*

XIX

*We took the iron-clad wave-tub home at ten,
And as we sat conversing on the deck
A certain Hester-street spaghetti-neck
Pipes through the darkness, "Who's yer ladyfren'?"
There might have been a hoe-down there and then
(That war-ship never came so near a wreck);
The dog-eye boy got just as pale as heck
And made a duck behind the trenches, when—*

*Pansy boiled up and clamped me by a flip.
"Nixie the kindergarten!" murmurs she.
"Gents," I replied out loud, "Get off the ship
And walk, or else nail down that repartee.
This yard of lace I'm holding, so to speak,
Is pinned on tight—or will be in a week."*

XX

*A-logging on a car-barn bench I spied
Gilly the Grip, quite recent this p.m.,
Just like a lily on a broken stem
Or like a Salt Lake buck without a bride.
"Chirk, Gilly, chirk!" I says in tones of pride,
"Perhaps this unhinged heart is just pro tem.
The world is full of pompadours for them
That keep their search-lights peeled from side to side."*

*But Gill remarked, "Eh, what? Say, I'm so slow
I couldn't catch the hour-hand on a clock.
I'm simply stationary as they grow;
A lamp-post race could beat me round the block.
You needn't think you're such an Alfred G.,
To motor by a quarry-cart like me!"*

XXI

*Next week the wedding-bells won't do a thing,
For I'll be there, I guess, to fill the set,
And Pansy's Ma, she won't be late, you bet,
To see the Reverend Mr. pull the string.
Me for a spike-tailed scabbard and a ring,
A shell-back shirt, forsooth a peacherette.
I'll be the daintiest bridegroom ever yet;
Nothing to do but take the count, then-bing!*

*Love in a cottage run on union pay—
Can Teddy Roosevelt do a sum like that?
Two can eat cheap as one, perhaps, but say,
You've got to beat a quarter pretty flat
To cork three squares, make Little Two Shoes snug
And keep the Wolf from chewing up the rug.*

XXII

*Methinks I'm tagged to join the Worry Club,
To chase the fleeting rhino through the gloom,
To bag the boodle, trap the wild mazume
And scratch for corn when Pansy hollers "Grub!"
They say I'll turn as sickly as a chub
When on the First, with dull and deadly boom,
The Rent comes round and walks into the room,
Remarking, "Peel or else file out, you scrub!"*

*But when your arms are full of girl and fluff
You hide your nerve behind a yard of grin;
You'd spit into a wild cat's face or bluff
A flock of dragons with a safety pin.
Life's a slow skate, but Love's the dopey gum
That puts a brewery horse in racing trim.*

EPILOGUE

*Kind reader, when you 'phone don't ask for me
Enquiring how a Flossie should be won—
There isn't any Rule Book, are you on?
And Queenie can't be coaxed by recipee.
Some girls like hard-luck music, minor key,
Some like the Gas-car Gussie act, hot ton,
Others are simply fierce for Jolly John
Who loves to make a noise like repartee.*

*None but the Nerve, say I, deserves the Fair,
And stony hearts can't stand up long to chin.
If Willie-on-the-doormat lingers there
The chances are he'll be Invited In.
Up against Love the Candy Kid is nix;
The Porous Plaster wins because it sticks*

*** END OF THE PROJECT GUTENBERG EBOOK THE LOVE
SONNETS OF A CAR CONDUCTOR ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of

the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide

access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the

electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE

LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability,

costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other

ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.